

cannot be applied here for summary judgment where the trial court cannot weigh evidence. (*Binder, supra*, 75 Cal.App.4th at 840 [It is improper for the court to weigh evidence on a motion for summary judgment or adjudication].)

Likewise, the Rafeedies' reliance on *Hayden v. Paramount Productions Inc.* (1939) 33 Cal.App.2d 287, 293 is inapplicable here because the court in *Hayden* found the plaintiff knew of the dangerous condition and deliberately moved toward the danger. The Rafeedies thus fail to present legal authority applicable to the facts of the instant case.

In opposition, Plaintiff again relies on *Ortega* and argues that because the Rafeedies had constructive knowledge of the dangerous condition, the injury was foreseeable, and the Rafeedies are liable. However, as discussed previously, Plaintiff misapplies *Ortega* and in fact presented evidence that there was no reasonable time for the Rafeedies to have notice of the dangerous condition.

Given the foregoing, a trial issue of material fact exists as to the existence of an independent intervening act.

The motion for summary judgment is **GRANTED**. Moving party is ordered to give notice of ruling within 10 days of this order. Defendants Issam and Lydia Rafeedie are ordered to submit a **proposed judgment in their favor within 30 days of this order**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501418	PATTERSON DENTAL SUPPLY, INC vs ZAREH	MOTION FOR ORDER FOR ATTORNEY'S FEES AND COSTS OF ENFORCING JUDGMENT

Tentative Ruling:

This motion is unopposed. Motion is granted. Proposed order granting motion has been signed and ordered filed with the Court. Moving party to give notice of ruling. Moving party to submit a proposed amended judgment within 30 days of this order. The matter is set for an OSC on 8/24/2026 regarding receipt of a proposed amended judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600575	CORTEZ vs ASBURY MANAGEMENT SERVICES, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant, Asbury Management Services, LLC ("Defendant")

Responding party: Plaintiff, Robert Cortez ("Plaintiff")